



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00125 Bison Business Park, 2nd Filing Annexation
Date: May 10, 2021

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/10/2021
- Public Services Committee 5/18/2021
- Second reading 5/24/2021
- Public Services Committee 6/8/2021
- Third and final reading 6/14/2021

Related Items:

- Bison Business Park, 2nd Filing Zone Change (UDC-21-00126)
- Bison Business Park, 2nd Filing Final Plat (UDC-21-00127)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED EAST OF AND INCLUDING SOUTH GREELEY HIGHWAY (US 85), NORTH OF CHALK BLUFF ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Arp and Hammond Hardware Company and Lummis Livestock Company, LLC, majority owners of:

A parcel of land located in portions of Sections 29, 32 and 33, Township 13 North, Range 66 West of the Sixth Principal Meridian, Laramie County, Wyoming and being more particularly described by metes and bounds as follows:

Beginning at the section corner common to Sections 28, 29, 32 and 33; thence along the north line of said Section 33 S89°42'44"E a distance of 2636.27 feet to the north one-quarter corner of said Section 33; thence along the north-south center section line of said Section 33 S00°08'28"W a distance of 5242.81 feet to a point on the north right of way of Chalk Bluff Road; thence along said north right of way N89°51'32"W a distance of 2022.94 feet to a point of intersection of said north right of way and the westerly right of way of US Highway 85; thence along said westerly right of way the following courses and distances: N25°52'10"W a distance of 6685.00 feet to a point; thence N05°39'12"W a distance of 1174.67 feet to a point; thence N02°49'25"W a distance of 2349.32 feet to a point; thence N86°55'57"E a distance of 46.00 feet; thence N03°04'03"W a distance of 262.19 feet to a point; thence leaving said westerly right of way N86°55'44"E a distance of 250.00 feet to a point on the easterly right of way of said US Highway 85; thence along said easterly right of way the following courses and distances: S03°04'03"E a distance of 2611.51 feet to the beginning of a curve to the left; said curve having a radius of 5604.65, a chord bearing of S14°28'06"E, a chord distance of 2215.79 feet and a central angle of 22°48'07", thence along the arc of said curve a distance of 2230.48 feet to a point; thence S25°52'10"E a distance of 69.18 feet to a point on the south property line of Lot 1, Block 1, Bison Business Park; thence along said south property line N64°07'39"E a distance of 603.84 feet to a point on the north line of said Section 33; thence S89°42'35"E a distance of 337.22 feet to a point; thence S89°42'21"E a distance of 662.27 feet more or less to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-2 Agricultural by the Laramie County Commissioners; and

- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____



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Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MAY 10, 2021

STAFF REPORT

FILE: UDC-21-00125: Annexation of Bison Business Park, 2nd Filing

REQUEST: An annexation of 428.1 acres of land

LOCATION: East of South Greeley Highway (US 85), north of Chalk Bluffs Road.

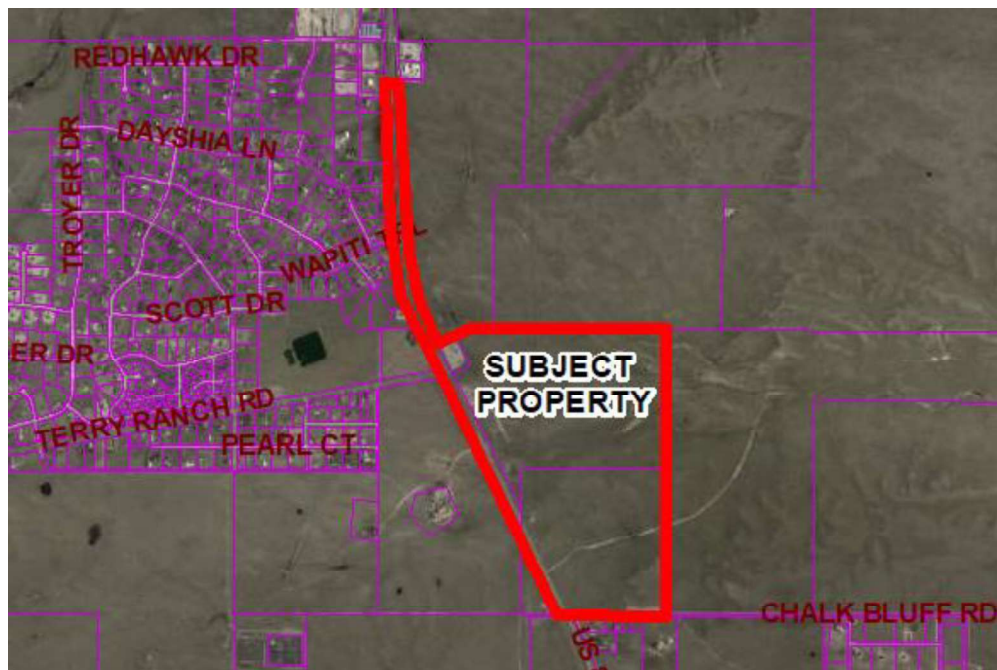
APPLICANT: Cheyenne LEADS

AGENT: Brad Emmons, AVI, PC

OWNER: Arp and Hammond Hardware Company, Lummis Livestock Company, LLC, and Wyoming Department of Transportation

PURPOSE: To allow urban-level residential development

PREPARED BY: Seth Lloyd, Planner II - Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 481 acres of land for future industrial development. The County Assessor presently shows the land as part of three unplatted parcels. The land is currently undeveloped in the County. A zone change and plat are proposed concurrently with this annexation. All three applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County A-2 Agricultural and Rural Residential to the City zones of AG Agricultural, LI Light Industrial, and HI heavy Industrial.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Industrial (recently changed)	County A-2	Undeveloped, Port-of-entry
North	Industrial (recently changed)	AG, HI (recently annexed and changed)	Undeveloped
South	Agricultural/Rural	<unzoned area>	Rural residential, Undeveloped
East	Agricultural/Rural	County A-2	Undeveloped
West	Urban Transition Residential	County A-2	Undeveloped

The property is currently zoned A-2 Agricultural in the County. The property is concurrently proposed to be annexed and rezoned to the AG Agricultural, LI Light Industrial, and HI heavy Industrial zones. The AG zone is generally described as a primarily agricultural zone intended for use where land is to be held in a natural state or as a holding zone until development is appropriate. The HI and LI zones are intended for industrial development and is appropriate near regional transportation routes and to larger land areas that are capable of providing substantial buffers and located remote from other differing and incompatible land uses.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the occupants of future development once it is built. By being in City limits, the property will receive access to

City Fire and Police and sanitation services. The property will also be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The contiguity to the north makes the parcel a natural geographic part of the City. The property is also adjacent to a major transportation route servicing the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. City water and sewer lines are planned to be extended to the area and with the development of the property.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation are about 33.7% contiguous, along the northern edge.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on April 8, 2021. The public hearing for this annexation is scheduled for May 10, 2021. Twenty (20) business days prior to

the announced public hearing is April 12, 2021. The earliest confirmation of receipt was dated April 9, 2021.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne anticipates this area of the community to develop with an urban residential style of development. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits. Policies in PlanCheyenne support development within the Urban Service Boundary and the utilization of existing infrastructure.

STAFF REVIEW:

Through the review process, comments were made noting that clarification of jurisdiction on US 85 is needed.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and services typically available to urban areas are available to this property.

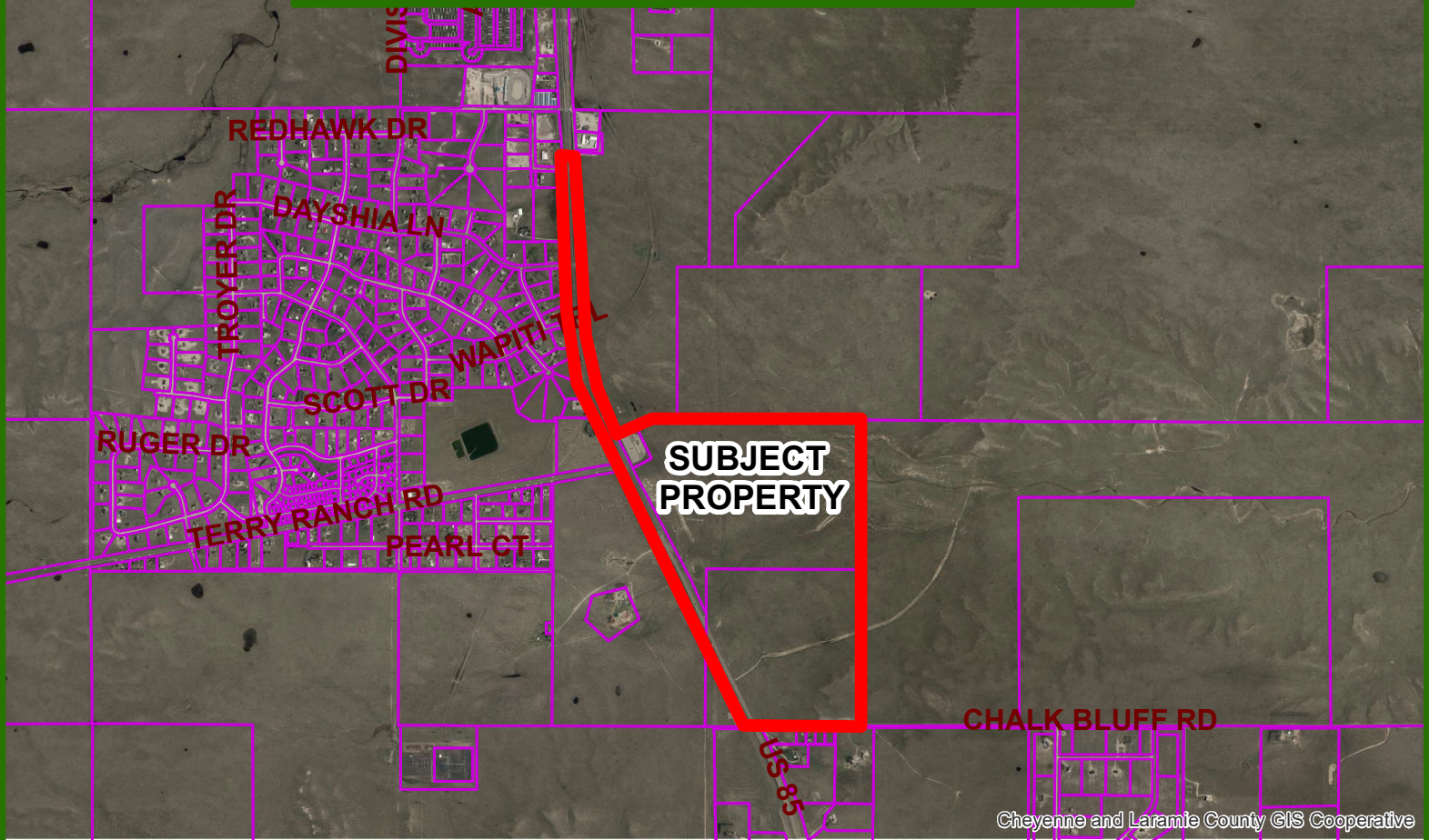
STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

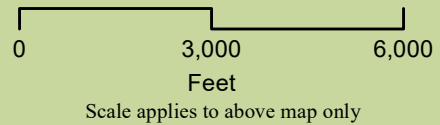
1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map

Bison Business Park, 2nd Filing Annexation

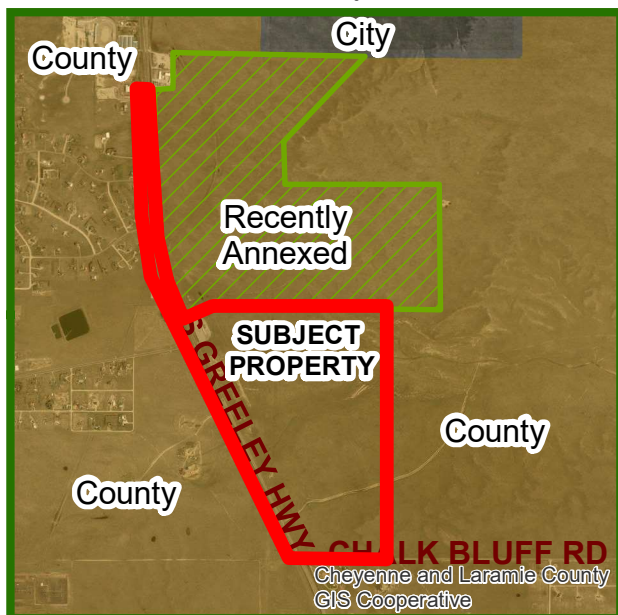


Application Number
Annexation
UDC-21-00125

Agent: AVI, PC
Brad Emmons
Owners: Lummis Livestock Co
Arp and Hammond Hardware Co

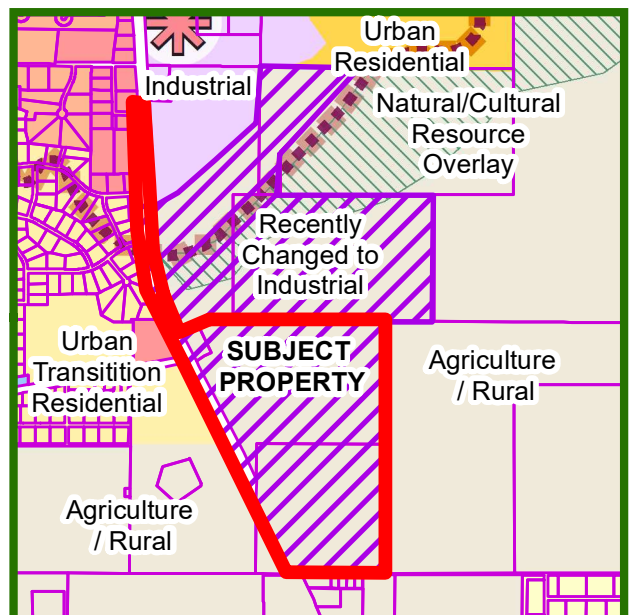


Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Annexation Application

Submission date: **31 March 2021, 5:24PM**
Receipt number: **10**
Related form version: **8**

General Information

Applicant Name:	Betsey Hale, Cheyenne LEADS
Applicant Address:	121 W 25th Street, Suite 304
Applicant City:	Cheyenne
Applicant State:	WY
Applicant Zip Code:	82009
Applicant Phone:	307-638-6000
Applicant Email	betseyh@cheyenneleads.org
Representative Name:	Brad Emmons, AVI pc
Representative Address:	1103 Old Town Lane, Suite 101
Representative City	Cheyenne
Representative State:	WY
Representative Zip Code:	82009
Representative Phone:	307-637-6017
Representative Email:	Emmons@avipc.com
Owner Name:	Doran E Lummis - Arp and Hammond Hardware Co and Lummis Livestock Co
Owner Address:	1828 Campstool Road
Owner City:	Cheyenne

Owner State:	WY
Owner Zip Code:	82007
Owner Phone:	307-630-3186
Owner Email:	d3lummis@gmail.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Letter of Authorization.pdf letter-of-authorization-fillable-form.pdf
Project Location (Street Address or General Location):	a portion of sections 29, 32 and 33, Township 13 North, Range 66 West of the 6th P.M. Laramie County, Wyoming
Assessor's Parcel ID number(s)	R0062974, R0065325, R0062986
Total Project Area	428.06 AC
Current Zoning	County A-2
Proposed Zoning	AG - Agricultural LI - Light Industrial HI - Heavy Industrial P - Public

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	unplatted
Formal Annexation Petition	annexation petition arp and hammon, lummis livestock.pdf annexation-petition (1).pdf
Board of Public Utilities Clearance Form	20210330_annexation-bopu-clearance bison 2nd_signed.pdf
Annexation Map	4435_ANNEXATION 2nd filing submit 3-31-21.pdf

Signature / Certification

Applicant Signature

Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT Arpa and Hammond Hardware Company &
Commis Livestock Company LLC,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne,
Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

situated in a portion of Sections 29, 32 and 33
Township 13 North, Range 16 West of the 6th
P.M. Laramie County, Wyoming

The undersigned petitioners hereby respectfully request that said property and
adjacent streets be annexed to the City of Cheyenne, and be made a part
thereof.

By submitting the petition for annexation, the undersigned agree to abide with
all applicable provisions and City ordinances, rules, and regulations involving
annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

Doran E Lummis
Signature

Doran E Lummis
Printed Name

3-26-21
Date

Doran E Lummis
Signature

Doran E Lummis
Printed Name

3-26-21
Date

Signature

Printed Name

Date

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Signature

Printed Name

Date

Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**
AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT Wyoming Department of Transportation,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne, Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

US 85 Port of Entry, 6525 South Greeley Highway

Book 1175 at Page 672 of the Records of Laramie County Clerk's office:

A tract of land situated in the NE1/4 of Section 32, Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at a point which bears S.84°57'22"W., a distance of 1,255.83 feet from the northeast corner of said Section 32:

thence S.25°35'00"E. a distance of 650.00 feet;

thence S.64°25'00"W. a distance of 325.00 feet to the easterly right-of-way line of U.S.

Highway No. 85;

thence N.25°35.2'00"W. along said easterly right-of-way line, a distance of 650.00 feet to a point, said point bears S.25°15'00"E. 68.87 feet from Wyoming Highway Department R/W Monument at Sta. 246+29.3;

thence N.64°25'00"E. a stance of 325.00 feet to the point of beginning.

Containing 4.8496 acres, more or less. Basis of bearing being the bearing S.25°35'E. along the easterly R/W of U.S. Highway No. 85 as shown on Wyoming Highway Department R/W plans.

The undersigned petitioners hereby respectfully request that said property and adjacent streets be annexed to the City of Cheyenne, and be made a part thereof.

By submitting the petition for annexation, the undersigned agree to abide with all applicable provisions and City ordinances, rules, and regulations involving annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

<i>Keith R Fulton</i>	Keith R Fulton	3-31-2021
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
Signature	Printed Name	Date
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Signature	Printed Name	Date

Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest: *Pam Fredrick*

